

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX #:524526/2021

Date Purchased: 9/28/2021

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MORRIS GREY

Plaintiff

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, Det. ABRAHAM
ARTEAGA,

Tax #929657, POLICE OFFICERS

JOHN DOE, JAMES ROE and JANE ROE, shield

#s Currently Unknown Defendants

PLAINTIFF designates KINGS

COUNTY as the place of trial

Basis of Venue is Cause of action

arose in KINGS County

AMENDED VERIFIED

COMPLAINT

Plaintiff Grey resides at 13 99

Stanley Ave, Bklyn, NY

11208.

JURY TRIAL

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Plaintiff MORRIS GREY, by and through his attorney, ROGER S. WAREHAM,
complaining of the defendants, alleges as follows:

INTRODUCTION

This is a proceeding instituted by the Plaintiff MORRIS GREY for violation of his civil and constitutional rights arising under State and Federal Law. Plaintiff GREY alleges that defendant Police Officers committed false arrest, false imprisonment, intentional infliction of emotional distress, negligence, libel and slander upon him. Defendant Police Officers violated Plaintiff's civil and constitutional rights pursuant to State and Federal laws. Finally, Plaintiff alleges that the City of New York, the New York City Police Department and its agents and assigns violated his constitutional rights protected under 42 U.S.C. sec. 1983. As a result of Defendants' unlawful acts, Plaintiff MORRIS GREY seeks monetary damages.

PRELIMINARY STATEMENT

1. On September 25, 2020 Plaintiff MORRIS GREY filed a Notice of Claim upon the City Defendants.

2. The Notice of Claim was duly served upon the Defendants within 90 days after the said cause of action accrued.
3. More than 90 days have elapsed since the service of the aforementioned Notice of Claim upon the City Defendants.
4. Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, its Comptroller or Fiscal Officers have failed, neglected and refused to pay, settle, compromise or adjust the claim of the Plaintiff.
5. This action is commenced within one year and ninety days after the cause of action accrued.
6. Plaintiff has duly complied with all the conditions precedent to the commencement of this action.

JURISDICTION

7. Jurisdiction in this action is claimed pursuant to the New York Civil Practice Laws and Rules, the New York State Constitution, the Fourteenth Amendment to the Constitution of the United States, 42 U.S.C. sections 1983, and 1988 and the laws of the State of New York. Declaratory, compensatory, punitive and other appropriate relief, including reasonable attorney's fees, are sought pursuant to the Civil Practice Laws and Rules [hereinafter CPLR]
8. This Court has jurisdiction over the state and federal claims alleged herein.
9. The value of the rights in question exceeds ten thousand dollars exclusive of interest and costs.

PARTIES

10. Plaintiff MORRIS GREY, a Black male, is a resident of Kings County, State of New York and is presently residing at 1399 Stanley Avenue, apartment 2, Brooklyn, NY 11208. At the time of the incident Plaintiff lived at the same address.
11. Defendant CITY OF NEW YORK is a municipal entity created under the laws of the State of New York and authorized to carry out certain functions by the State of New York through its employees, including the function of providing for the safety and well-being of all of its citizens by and through the operation of a police department.
12. Defendant NEW YORK CITY POLICE DEPARTMENT is a municipal agency department, created and operating under the laws of the State of New York with the purpose, through its employees of providing for the safety and well-being of the residents of the City of New York.
13. The CITY OF NEW YORK has its office for doing business through the office of the Corporation Counsel, and a Notice of Claim was duly filed with said office for the injuries sustained by Plaintiff.
14. Defendants Det. Abraham Arteaga, tax i.d. #929657, Police Officers John Doe and James Roe, shield #s currently unknown were carrying out their official functions as police officers in and of the New York City Police Department, employed by the City of New York.
15. The incidents as described hereinafter took place in the City of New York, County of Kings, State of New York. **FACTUAL ALLEGATIONS**
16. The incident giving rise to this complaint arose on June 30, 2020 at approximately 9:34 a.m. at 1399 Stanley Avenue, Brooklyn, NY 11208.

17. At that time, Plaintiff Grey was sitting on the terrace of his residence when three police officers arrived and asked him to come downstairs
18. The officers said that Det. Arteaga would like to discuss with him an incident that happened on Van Siclen Avenue.
19. Plaintiff Grey was handcuffed and placed in the back seat of an unmarked car and taken to the 75th Pct.
20. At the 75th Pct, Plaintiff Grey was searched, had his shoelaces and belt taken and placed in a cell.
21. The defendant Police Officers held Plaintiff Grey at the 75th Pct for several hours, telling him to await questioning by Det. Arteaga.
22. Finally about 4:15 pm, Det. Arteaga appeared, told Plaintiff Grey that he would be going to Central Booking to be charged with aggravated assault for breaking a complainant's nose.
23. Defendant Arteaga took a photograph of Plaintiff Grey.
24. A few minutes later, Defendant Arteaga returned, told Plaintiff Grey that he was "vacating the arrest," walked him out of the Precinct, returned his belongings, and told him the complainant had indicated that Plaintiff Grey was not the perpetrator.
25. Defendant police officers, under the mantle of authority vested in them by the City of New York through the NYPD, engaged in illegal conduct, as described herein, in the false arrest of Plaintiff Grey. In that regard and to that extent, Defendants caused Plaintiff Grey injury and damage in derogation of the rights guaranteed to Plaintiff Grey under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the

equivalent provisions encompassed herein and under the Constitution of the State of New York.

26. It is believed that Plaintiff's mistreatment was due to his race.
27. Plaintiff was subjected to violation of his Federally guaranteed constitutional and civil rights under the First, Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, U.S.C. sec. 1983.
28. The City of New York has a policy and practice which encompass the philosophy that "the ends justify the means" and that police officers "can act with impunity towards Black people in general and Black males in particular," which cause individuals to be subjected to wrongful conduct and actions by Police officers, including being subjected to false arrests.
29. The actions and conduct of the Officers herein were propelled by the policy and practice as described.
30. The policy of the City of New York impacts in a disproportionate manner and fashion on Black people, other persons of color and "minority" status who are in the City of New York and particularly on Black males.
31. The policy and practice are unconstitutional and violative of Plaintiff's rights under the First, Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1971, 42 U.S.C. sec. 1983. It is violative of Plaintiff's rights under the laws and Constitution of the State of New York.
32. The actions and conduct of the officers were intentional and, in the alternative, negligent.
33. The actions of the New York City Police Department were intentional and, in the alternative, negligent.

34. The Plaintiff suffered injuries and damages as a consequence of the wrongful conduct, policy and practice, including emotional distress, embarrassment, humiliation, mental anguish and psychological trauma, as well as damage to his professional reputation.
35. As a direct and proximate result of the failure to adequately train said Defendant Police Officers, Plaintiff was placed in apprehension of his safety.
36. All Defendants' actions constituted an invasion of Plaintiff's peace of mind and right to be free from the intentional infliction of emotional distress.
37. Defendant Police Officers and Police department had a duty and obligation by law to conform to a standard of conduct and care and not to subject Plaintiff to such intentional infliction of emotional distress.
38. Defendant Police Officers and Police department failed to adhere to and breached their duty to conform to the aforementioned standard of care.
39. All acts and omissions complained of all Defendants herein were undertaken and conducted maliciously, intentionally, deliberately, willfully, knowingly and voluntarily, and were undertaken and conducted without consent, necessity, justification, authority, privilege or mistake,
40. At all times herein, Defendant Police Officers and Police department desired, intended and knew with substantial certainty that their actions would cause harm and injuries which the Plaintiff suffered thereby.
41. Defendant Police Officers and Police department acting in concert with each other and under pretense of color of law and in their respective official capacities acted beyond the scope of their jurisdiction and in abuse of their powers and each Defendant Police Officer acted willfully, knowingly and with specific intent to deprive the Plaintiff of his rights to

be free from unreasonable searched and seizures, to equal protection, and due process of law, all of which are secured the Plaintiff by the U.S. Constitution and by 42 U.S.C. sec 1983.

42. As a result of the negligence of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, in failing to act upon its notice or upon its constructive notice as to the unstable propensities of the above captioned Police Officers, the Plaintiff suffered mental distress.

43. The defendant Police Officers had knowledge and formed the intent to commit the aforesaid unlawful conduct. Each had the power to aid in preventing the commission of the same and each possessed the duty to prevent or aid in preventing the commission of the same. Each defendant Police Officer neglected or refused to do so and, as a result of this conduct, caused the Plaintiff injuries which could have been prevented with the exercise of said Officers' reasonable diligence.

FIRST CAUSE OF ACTION

44. Based on the foregoing, Plaintiff Grey sets forth a cause of action for false arrest against the Defendant Police Officers and the Police Department and is entitled to damages therefor.

SECOND CAUSE OF ACTION

45. Plaintiff repeats here, as if stated in full, all allegations contained in the preceding paragraphs of this complaint.

46. Based on the foregoing, Plaintiff Grey sets forth a cause of action for false imprisonment against Defendants and is entitled to damages therefor.

THIRD CAUSE OF ACTION

47. Plaintiff repeats here, as if stated in full, all allegations contained in the preceding paragraphs of this complaint.

48. Based on the foregoing, Plaintiff Grey sets forth a cause of action for intentional infliction of emotional distress against Defendants and is entitled to damages therefor.

FOURTH CAUSE OF ACTION

49. Plaintiff repeats here, as if stated in full, all allegations contained in the preceding paragraphs of this complaint.

50. Based on the foregoing, Plaintiff Grey sets forth a cause of action for negligence against Defendants and is entitled to damages therefor.

FIFTH CAUSE OF ACTION

51. Plaintiff repeats here, as if stated in full, all allegations contained in the preceding paragraphs of this complaint.

52. Based on the foregoing, Defendants violated Plaintiff Grey's rights under the United States Constitution, its Fourth, Eighth and Fourteenth Amendments and 42 U.S.C. sec. 1983, for which Plaintiff Grey is entitled to damages.

SIXTH CAUSE OF ACTION

53. Plaintiff repeats here, as if stated in full, all allegations contained in the preceding paragraphs of this complaint.

54. Based on the foregoing, Defendants libeled and slandered Plaintiff Grey for which injuries Plaintiff are entitled to damages.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment by this Court on all causes of action against the above-captioned Police Officers, the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, as follows:

- a. For Plaintiff Grey: in excess of \$250,000 in compensatory damages and a like amount in punitive damages
- b. The amount of damages sought are within the jurisdiction of the Court.
- c. Awarding Plaintiff the cost for disbursement and reasonable attorney's fees pursuant to 42 U.S.C. sec. 1988 and New York State Laws for prosecuting this action; and
- d. Granting Plaintiff such other different and further relief as may be just, proper and equitable.

DATED: BROOKLYN, NEW YORK
September 27 2021

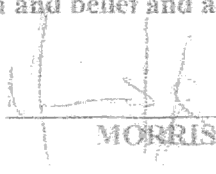

ROGER S. WAREHAM, ESQ.
394 Putnam Avenue
Brooklyn, NY 11216
(718) 230-5270
rwarehamlaw@aol.com

VERIFICATION

STATE OF NEW YORK:

COUNTY OF KINGS:

MORRIS GREY, being duly sworn, states that he is the Plaintiff in this action and that the foregoing Complaint is true to his own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters he believes them to be true.



MORRIS GREY

Sworn to before me this 27th Day of
September, 2021.



NOTARY PUBLIC

ROGER S. WAREHAM
Notary Public, State of New York
No. 02WA5024853
Qualified in New York County of Kings
Commission Expires May 6, 2022

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY PART

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MORRIS GREY

Plaintiff

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DET
ABRAHAMARTEAGA, Tax i.d. #929657, P.O.s JOHN DOE, JAMES ROE, JANE ROE,
Shield #s unknown, Respondents

SUMMONS AND COMPLAINT

ROGER S. WAREHAM
Attorney for Plaintiff
394 Putnam Avenue
Brooklyn, N.Y. 11216
(718) 230-5270

To:

Service of a copy of the
within is hereby admitted

Dated

Attorney(s)

for

PLEASE TAKE NOTICE:
NOTICE OF ENTRYthat the within is a (certified) true copy of an
duly entered in the office of the clerk of the within named
court on

NOTICE OF SETTLEMENT

that an

, of which the within is a
true copy, will

be presented for settlement to the Hon.

one of the judges of the within named Court
on , at

yours, etc.

Dated:

ROGER S. WAREHAM
Attorney for Petitioner
394 Putnam Ave.
Brooklyn, NY 11216
(718) 230-5270

To: